

RECORDING REQUESTED BY AND RETURN TO:

Frost Bank
Home Equity Lending, P.O. Box 1600
San Antonio, Texas 78296

Loan No.: FB-2024-HE-082741 **Property ID:** 38-7423-0014-00900

TEXAS HOME EQUITY SECURITY INSTRUMENT

(Deed of Trust — Texas Constitution, Article XVI, §50(a)(6))

NOTICE REQUIRED BY TEXAS CONSTITUTION: THIS IS A HOME EQUITY LOAN. THE EXTENSION OF CREDIT DEFINED BY SECTION 50(a)(6), ARTICLE XVI, TEXAS CONSTITUTION, AND SECURED BY THE LIEN ON YOUR HOMESTEAD MAY NOT BE MADE WITHOUT YOUR FREE CONSENT. YOU MAY RESCIND THIS TRANSACTION WITHIN THREE DAYS AFTER CLOSING. THE LENDER MUST PROVIDE YOU WITH A COPY OF THIS NOTICE, THE LOAN CLOSING DISCLOSURE, AND ALL OTHER DOCUMENTS SIGNED AT CLOSING.

**STATE OF TEXAS
COUNTY OF BEXAR**

THIS DEED OF TRUST is entered into as of the **15th day of November, 2024**, by and among:

GRANTOR/BORROWER: CARLOS M. REYES and MARIA L. REYES, husband and wife, residing at 9823 Bluebonnet Court, San Antonio, Texas 78240 (hereinafter collectively "Grantor");

TRUSTEE: TEXAS TITLE SERVICES, LLC, a Texas limited liability company, located at 100 West Houston Street, Suite 1850, San Antonio, Texas 78205 (hereinafter "Trustee"); and

LENDER/BENEFICIARY: FROST BANK, a Texas state bank, with its principal office at 100 West Houston Street, San Antonio, Texas 78205 (hereinafter "Lender").

RECITALS

WHEREAS, Grantor has applied for a home equity loan in the principal amount of **ONE HUNDRED SEVENTY-FIVE THOUSAND AND NO/100 DOLLARS (\$175,000.00)** pursuant to the authority granted by Section 50(a)(6), Article XVI, of the Texas Constitution; and

WHEREAS, said loan does not exceed 80% of the fair market value of the homestead property, as required by the Texas Constitution; and

WHEREAS, Grantor desires to secure repayment of said loan by granting to Trustee a lien on Grantor's homestead property as described herein;

NOW, THEREFORE, in consideration of the loan herein and for other valuable consideration, Grantor hereby irrevocably GRANTS, CONVEYS, AND WARRANTS to Trustee, for the benefit of Lender, the following described property (the "Property"):

PROPERTY DESCRIPTION

Property Address: 9823 Bluebonnet Court, San Antonio, Texas 78240

Property ID (Bexar County Appraisal District): 38-7423-0014-00900

LOT 14, BLOCK 7, EMERALD HILLS SUBDIVISION, UNIT IV, AN ADDITION TO THE CITY OF SAN ANTONIO, BEXAR COUNTY, TEXAS, ACCORDING TO THE PLAT THEREOF RECORDED IN VOLUME 9862, PAGE 147, OF THE MAP AND PLAT RECORDS OF BEXAR COUNTY, TEXAS.

TOGETHER WITH all improvements thereon and all fixtures attached thereto; all easements, appurtenances, and all other rights belonging or appertaining to said property.

This property IS the homestead of Grantor and is subject to the restrictions and protections of the Texas Constitution.

LOAN TERMS

Loan Type: Texas Home Equity Loan (§50(a)(6))

Original Loan Amount: \$175,000.00

Interest Rate: 7.50% per annum (fixed)

Loan Term: 15 years

Note Date: November 15, 2024

Maturity Date: December 1, 2039

Approximate Monthly Payment (P&I): \$1,621.00

COVENANTS AND CONDITIONS

1. Payment of Indebtedness. Grantor shall pay when due all principal and interest under the Note, and all amounts due under this Deed of Trust.

2. Homestead Status. The Property described herein is the urban homestead of Grantor. Grantor represents that the Property constitutes Grantor's homestead under the laws of the State of Texas and that Grantor has not designated any other property as homestead.

3. Texas Constitution Compliance. This extension of credit is made in compliance with Section 50(a)(6), Article XVI, of the Texas Constitution. The lien created hereby is a valid and enforceable lien on the homestead of Grantor, not to exceed eighty percent (80%) of the fair market value of the homestead on the date the extension of credit is made. The total amount of debt secured by this instrument does not exceed the amount permitted under the Texas Constitution.

4. Insurance and Taxes. Grantor shall maintain hazard insurance and shall timely pay all ad valorem taxes and assessments on the Property. Failure to maintain insurance or pay taxes constitutes a default hereunder.

5. Prohibition on Foreclosure Without Notice. Lender shall not accelerate the maturity of the debt or foreclose the lien on the homestead without providing the notice required under Section 50(a)(6)(D), Article XVI, of the Texas Constitution, and without first sending Grantor written notice of the claimed default at least 20 days prior to the date on which Lender requests Trustee to sell the homestead.

6. Three-Day Right of Rescission. Grantor acknowledges that this loan may be rescinded without penalty or charge within three (3) business days after the closing of the loan and the signing of all loan documents.

7. Trustee's Power of Sale. If Grantor defaults under the Note or this Deed of Trust and fails to cure such default after notice, Trustee is authorized, at the written direction of Lender and after

expiration of all required notice periods, to sell the Property at public auction in the manner prescribed by Chapter 51 of the Texas Property Code.

SIGNATURES OF GRANTOR

IN WITNESS WHEREOF, Grantor has executed this Deed of Trust as of the date first written above.

CARLOS M. REYES, Grantor
Date: November 15, 2024

MARIA L. REYES, Grantor
Date: November 15, 2024

NOTARY ACKNOWLEDGMENT

STATE OF TEXAS
COUNTY OF BEXAR

Before me, the undersigned authority, on this day personally appeared **Carlos M. Reyes** and **Maria L. Reyes**, known to me to be the person(s) whose name(s) are subscribed to the foregoing instrument and acknowledged to me that they executed the same for the purposes and consideration therein expressed, and in the capacity therein stated, as their free act and deed.

Given under my hand and seal of office this **15th day of November, 2024**.

DIANA G. MORALES, Notary Public
State of Texas
My Commission Expires: August 31, 2026
Notary ID: 132-847-9921

FILED FOR RECORD IN THE OFFICIAL PUBLIC RECORDS OF BEXAR COUNTY, TEXAS

Instrument No.: 20240487921 | Filed: November 18, 2024
LUCY ADAME-CLARK, Bexar County Clerk